

CHRISTENDOM COLLEGE

CHRISTENDOM COLLEGE ONLINE LEARNING

The History of Western Political Thought

Lecture 5: American Political Thought: Alexis de Tocqueville's Democracy in America

Introduction

Greetings and welcome to this lecture on American political thought. Alexis de Tocqueville's Democracy in America. In this lecture, I would like to talk a little bit about the origins of political thought and political philosophy in America. Say something about a famous French aristocrat, who offered insightful reflections on American democracy, and conclude with a reflection on the place of America in the history of political thought. So to begin, as we saw in the previous lecture, the political philosophy of John Locke and the idea of social contract theory become very important for the beginning of the American Republic. We spoke a little bit of the idea of an inalienable right. If you recall, an inalienable right is one which can never be surrendered voluntarily by any person or taken by any government because these rights are understood to be so crucial to who we are as human beings. So if we fast forward about a century from the late 17th century in England to the late 18th century in America, we can see the important influence of some of John Locke's political ideas on the men responsible for the American Revolution and the founding of the American Republic.

Thomas Jefferson and the Declaration of Independence

In speaking of the political philosophy that animates the founding of the American Republic, there is perhaps no more important figure to mention than Thomas Jefferson and his famous Declaration of Independence. Now, many of us who have read the Declaration in school or in other places over the years are likely familiar with the famous first part of the Declaration and less familiar with the somewhat more boring second part. But I would like to talk a little bit, even if briefly, about both parts. The first part is justly the more famous of the two parts because it outlines even in sort of nascent form the political philosophy that was going to animate this new country that the Americans were founding. And in that famous opening part, Jefferson tells his fellow Americans and all mankind, quote, "We hold these truths to be self-evident that all men are created equal and that they are endowed by their creator with certain inalienable rights which among these are life, liberty, and the pursuit of happiness." Now, notice how some of the language that Jefferson uses and maybe the most famous sentence of the entire Declaration points back to the social contract theory of John Locke that we were looking at in the previous lecture. When Jefferson says all men are created equal, he is referring, even if you may be never realized it, to this idea of the state of nature. Jefferson is referring to Locke's famous idea that man is by nature a solitary individual who possesses maximum equality, freedom, and rights. And he

acknowledges, as Locke did almost a hundred years before him, that that equality, that freedom, those rights can never be surrendered except voluntarily. We cannot give up our equality, our rights, and our freedom except by giving our consent. And Jefferson also follows Locke in acknowledging that certain rights, as we have said, are inalienable. Certain rights are so essential to our natures, to who we are as human beings, that no person can ever give them up voluntarily, and no government can ever legitimately take them. Now, a question my students often ask is why does Jefferson change Locke's famous list of inalienable rights? If you recall from the previous lecture, Locke lists the inalienable rights as life, liberty, and property. Jefferson changes that formulation slightly in describing the inalienable rights as being life, liberty, and the pursuit of happiness. Now, the truth of the matter is that we don't precisely know what is responsible for this change. We don't know with any degree of certainty why Jefferson didn't simply copy Locke's list, but instead changed property as the third item to the pursuit of happiness. Whatever may have motivated Thomas Jefferson to do this, however, I can assure you that Jefferson didn't value property rights any less than did John Locke. Scholars have speculated that one of the reasons that Jefferson describes that third inalienable right, as consisting in the pursuit of happiness, is because he wants to include sort of all forms of pursuit that might be available to us and necessary to us in order to achieve happiness. I have no doubt that Jefferson understood private property as being an essential element of the pursuit of happiness, but it is perhaps possible that he did not want to limit the concept of the pursuit of happiness simply to the right to possess private property. All of that being said, after Jefferson writes that famous first part of the declaration, he goes on in the less famous and, as I've said, slightly more boring second part to continue to enunciate social contract theory. If you have an opportunity to glance at the second part of the declaration, you will see Jefferson's list in a very thorough going way. All of the ways in which he claims that King George III of England has acted so as to violate the inalienable rights of the American colonists. So we can understand the declaration as, in the first part, outlining a theory about political philosophy, a version of social contract theory, similar to that of John Locke, and in the second part, giving evidence as to how the King of England violated these inalienable rights of Americans, and therefore why it is that the Americans are justified in their revolutionary pursuits. So with that as background, I would

Alexis de Tocqueville

like to speak about a famous, perhaps the most famous observer of American democracy, an early 19th century French aristocrat by the name of Alexis de Tocqueville. Alexis de Tocqueville lived from 1805 to 1859, and his importance to American political philosophy really can't be understated. So let's do a little bit by way of background. As I've said, Tocqueville was born in France and raised as a member of the French aristocratic class. He was catholic by heritage, although there is some dispute about the degree of seriousness with which he practiced his faith. Nonetheless, Tocqueville was trained as what we might call, using a more contemporary term, a sociologist. He was interested in studying the structures of human society and the way that human beings related to one another and to those structures. And so in the early decades of the 19th century, Tocqueville actually receives a commission from the French government to come to America to study a very narrow and very limited topic. Tocqueville gets permission not to come and make general observations about American democracy, but instead to study the American prison system and offer a theory of what we might

call penal reform. So with this commission in hand, Tocqueville travels to the United States and as many good academics are want to do, promptly ignores the original task given to him and ends up studying what he wants to study in the first place, which is American democracy broadly speaking. Now Tocqueville's story in America is quite an interesting one. Tocqueville in fact ends up spending years and years traveling around all different parts of the United States. He meets with what we might call common men and women. He meets with businessmen. He meets with politicians. He even gets an audience at the White House.

And after these years of travel and many, many volumes of extensive diary notes that Tocqueville had taken, in the year 1835 he publishes his most famous work of political philosophy, which comes to us with the title *Democracy in America*. Now democracy in America has been described by one scholar as both the best book on America ever written and the best book on democracy ever written. And I think it's hard to argue with both of those claims. If you pick up a copy of *Democracy in America* in English today, you will see that the work in two volumes runs well over 700 pages. It is an extensive sociological, political, philosophical, theological, economic study of America in the early decades of the 19th century. Now if it was only an interesting study of America in the early decades of the 19th century, then it might not be of very much interest to us today.

But democracy in America remains in print and it remains an important work taught in political science classes all across the country and even around the world because of the insight that Tocqueville had not only into the Americans that he met during his travels, but into American political philosophy and his insights into American democracy more generally. And so I would just like to speak briefly about some of the insights that Tocqueville has in his journeys and in his writings and speak a little bit about how those insights remain relevant to us today. The first thing that's important to understand about Tocqueville's analysis of democracy is that when he arrives in the United States, he arrives as someone who is in fact suspicious of democratic forms of government. As I said earlier, Tocqueville is a member of the French aristocratic class. He is born less than two decades after the excesses of the French Revolution and he is raised in a political climate where he and others are taught quite understandably to be suspicious of democracy and democratic forms of government. And one of the important themes that you will see if you even pick up a short section of *democracy in America* is the way that Tocqueville balances his newfound praise for democracy with some lingering suspicion about things that democratic forms of government might not do as well. Tocqueville famously observes of the Americans that the practice of their democracy, the way that they live it out on a day-to-day basis is actually superior in his mind to their democratic theory. So with that caveat,

Self-interest Well Understood

let's talk about some of Tocqueville's most famous concepts. One very famous concept that you may have heard of if you've studied or read any of Tocqueville is Tocqueville's idea of "self-interest well understood." What does Tocqueville mean by self-interest well understood? Well, when Tocqueville arrives in America and meets people from all walks of life, he does observe that more than many Europeans, Americans are what he calls a highly self-interested people. Americans, excuse me, on Tocqueville's view tend to think more about

themselves and less about other people than those that he has met in other parts of the world, particularly in Europe. Tocqueville's writings are replete with examples of this and you may think that this claim is true or you may not, but it is an observation that Tocqueville makes. Americans are self-interested. But that self-interest, despite the way it is initially presented, is not necessarily understood as a completely bad thing by Tocqueville. Americans are self-interested, he says, but he also observes the ways in which that self-interest tends to benefit the common good. Tocqueville observes of Americans what other political philosophers have observed of Americans, namely that it seems that when individual Americans act out of their own self-interest, it nonetheless happens to be the case that collectively the common good is benefited. In other words, we don't always have to have our minds focused on other people rather than ourselves in order to live and work in a governmental system in which all can benefit. So Tocqueville's idea of self-interest well understood combines two important elements. First, the idea that Americans look inward more than other people do, but also second, the conclusion which follows from that, namely, that this looking inward does not necessarily do damage to the body politic as a whole. Now, to be fair to Tocqueville, this element of American life is never one that he endorsed completely. Tocqueville, I think, is someone who always believed that Americans were a little bit too self-interested. He claims in various places in *Democracy in America* that the lofty virtues seen among other peoples of the world and among peoples in previous kinds will never be present in America. But nonetheless, Americans are able to structure both their personal and governmental interactions in such a way that they can benefit themselves but also benefit their fellow man. So, moving on from this idea of self-interest well understood, Tocqueville, it

American Concept of Rights

should not be surprising, also has a lot to say about the American concept of rights. I've spoken a little bit previously in this lecture and in the last lecture about understandings of rights and particularly of inalienable rights, understandings of rights in the context of social contract theory and in the context of the American founding. And Tocqueville, by and large, is an admirer of these rights. He is an admirer of a governmental system that says that the government or the central political authority is not permitted to interfere in the lives of individuals on these important matters. Again, I think Tocqueville's admiration of American rights owes a lot to the experience of the French Revolution and the excesses of the revolutionary government. Tocqueville sees something salutary in the protections that American government offers its citizens, in the idea that American government can go so far, yes, but no farther, and that Americans have means at their disposal to protest violations of their rights. And yet, as I have said, Tocqueville views all of these concepts sort of as a two-edged sword. So what part of American rights is Tocqueville suspicious of? Well, here, interestingly, Tocqueville was able to see better than most very far into the future. What do I mean by that? Well, while Tocqueville is an admirer of these inalienable rights of life, liberty, and the pursuit of happiness, Tocqueville anticipated the way in which the concept of rights could become perverted. So these inalienable rights are generally understood as what political philosophers call negative rights, ways in which individual human beings should not be interfered with. To say that I have a right to life means that you, the government, are not to interfere with my life.

To say that I possess an inalienable right to liberty is to say to my government, you are not to interfere with my liberty.

Insofar as rights are understood in this way, Tocqueville is a great admirer of them. But Tocqueville also anticipated the development of what we might call positive rights. These are demands that individual persons might place on their government. And although he was decades and even more than a century ahead of his time, Tocqueville did anticipate, however briefly, the development of concepts like reproductive rights, rights to healthcare, environmental rights, and other sorts of demands that individuals make on their government to be provided with certain goods or services. And although things like reproductive rights were not an issue, in the America of Tocqueville's day, he did understand how potentially dangerous it could be when the language of rights was turned from freedom from interference into a positive demand that governments provide citizens with whatever they ask for. So, as in the case of self-interest well understood, so also with the case of rights, Tocqueville sees something both positive and negative. Thirdly, I would like to say something about Tocqueville's observations on the issue of religion. Tocqueville observes, as any American or visitor of this period would have, that the Americans of the early 19th century were a highly religious people. He observed primarily the different sects of Protestantism active in the United States at this time, and he noticed the sort of seriousness and fervency with which Americans practiced religion, the seriousness with which they held their religious beliefs. And although, as I indicated earlier, Tocqueville's relationship to religion in his personal life is a somewhat controversial one, Tocqueville nonetheless admired this sincere religious belief that he found in the American citizenry. Here again, I suspect that his French past played a role. He saw in the France of his time and right before the ways in which religion could be manipulated to the service of very bad ends. And so, this genuine, this authentic, this sincere religious belief that Tocqueville finds in American citizens is something that he greatly admires. And yet again, it is something that makes him suspicious. What you might ask makes Tocqueville suspicious about Americans' practice of religion? Well, Tocqueville observes that even though Americans take their religious beliefs and their religious practices seriously, they are sometimes willing to subordinate their religious beliefs to their political ones. Tocqueville worries that these Americans living and expanding the country in the early decades of the 19th century may in fact, whether intentionally or more likely unintentionally, actually compromise their religious beliefs in this pursuit of political, material, and economic ends. Tocqueville doesn't ultimately pass judgment one way or another. He doesn't say that America is sort of bound to go in this direction. But this idea of self-interest that we discussed earlier, I think Tocqueville sees this idea as potentially infecting American religious belief, potentially diluting it, potentially making it less serious as Americans value political, material, and economic success more than the authenticity of their religious belief. Fourth and finally, I

Soft Despotism

would like to speak of Tocqueville's idea of soft despotism. Soft despotism is a term coined by Tocqueville, but the concept is not actually original to him. Tocqueville was worried, as James Madison had been decades earlier, about what Americans have often called the idea of majority tyranny. That decisions in American

government should be made by majority vote was really never a principle that was held to be all that controversial. That Americans would make decisions in that manner was never really in doubt. And yet James Madison and Alexis de Tocqueville a few decades later understood that even when decisions are made by majority vote, there exists the possibility that that majority could trample on the inalienable rights of the minority. And if those inalienable rights really are as important as Locke and Jefferson and the Americans understood them to be, both Madison and Tocqueville worried that simple decisions made by majority vote could, in particular instances, have the effect of trampling on the rights of minorities and perhaps even large minorities. Keep in mind that in order for a decision to be reached by majority vote, it only requires 50% plus one of the population. That other 49.9% of the population could, in theory, be oppressed by the majority. So here again, we see an example of Tocqueville admiring the simplicity of the American system, the idea that each person gets a vote, that each person is equal, and that what each person has to say really does matter. And yet at the same time, looking to the future, Tocqueville worried, as Madison did before him, about the possibility of that majoritarianism being used to oppress the rights of others. So in

Conclusion

conclusion, I hope that you can see the ways in which social contract theory makes its way into the practice of American democracy and the ways in which it influences the development of American political philosophy. Alexis de Tocqueville and his work *Democracy in America* remain important both for the observations that he makes during the early years of the 19th century, but also for the potential dangers that he observes. We may think that the dangers observed by Tocqueville are still dangers that we as early 21st century Americans can face, and an extensive and thorough reading of *democracy in America* can alert us to those dangers, but also give us potential tools for dealing with these problems as they arise.

Study Questions

1. In Jefferson's listing of inalienable rights, what does he replace property with?

- A) Equality
- B) The pursuit of happiness
- C) Wealth
- D) The right to bear arms

2. Which of the following is NOT true of Alexis de Tocqueville?

- A) He observed that American democracy in theory is better than its actual practice
- B) His works were likely influenced by growing up in the French Revolution
- C) His overall goal was to study the structures of human society and how human beings relate to those structures and to each other
- D) His work, *Democracy in America*, is considered one of the best books on both America and on democracy in general

3. What does Tocqueville refer to by the term "self-interest well understood"?

- A) Widespread American self-interest is damaging their democracy
- B) The purpose of democracy is to serve the self-interest of individuals
- C) Americans are able to structure both their personal lives and government structures in ways that benefit both themselves and their fellow man
- D) Americans tend to focus more on other people than on their own affairs

4. Which of the following is an example of a negative right?

- A) The government ought to maintain national parks and wildlife reservations
- B) The people are entitled to government-funded healthcare
- C) The government must protect women's reproductive rights
- D) The government is not to interfere with the life or liberty of its people